

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
APRIL 22, 2026
8:30 a.m.

3. BRIAN EDWARD SEAHOLM V. VANESSA RUELLYN SEAHOLM 25FL0271

This matter is before the court for hearing of the Request for Order (RFO) filed by the Respondent on March 10, 2026, to modify child custody. The RFO also includes a request for temporary emergency orders, which the court denied the same day it was filed. On March 19, 2026, Respondent filed a Declaration (Judicial Council form MC-030) with several attachments. Proof of service, also filed March 19, 2026, shows that the RFO, as well as Judicial Council form MC-030 and its attachments, were electronically served upon Petitioner that same day.¹

On April 06, 2026, Petitioner filed a Responsive Declaration, a copy of which was electronically served upon Respondent that same day according to the proof of service, also filed April 06, 2026.

Respondent filed no timely reply declaration.

The court notes it generally does not issue a new CCRC referral on a contested custody matter where a CCRC report has been issued within the past six months. (El Dorado Super. Ct., Local Ct. R. 8.10.01.) In this case, the instant RFO was filed roughly two-and-a-half months after the previous CCRC report, issued January 22, 2026. Therefore, the court did not issue a new CCRC referral upon the filing of the instant RFO. However, the court notes that the January 22, 2026, CCRC report was a “One Parent” report due to the fact that the Respondent declined to participate, stating she was not ready. Therefore, the court will re-refer the parties to CCRC.

The court orders the parties to participate in CCRC on Thursday, May 07, 2026, at 9:00 a.m. and sets the matter for review on Wednesday, June 24, 2026, at 8:30 a.m. in Department 12 of the court. The court will issue a new Tentative Ruling by 2:00 p.m. the day prior to the new hearing date. Any supplemental declarations in response to the new CCRC report must be served and filed at least 10 days prior to the new hearing date. The parties are directed to submit the required CCRC questionnaire (Local Form F-17a, which can be downloaded from the court’s website or obtained from the Clerk’s Office) at least five days prior to the CCRC session.

TENTATIVE RULING #3: THE COURT ORDERS THE PARTIES TO PARTICIPATE IN CCRC ON THURSDAY, MAY 07, 2026, AT 9:00 A.M. AND SETS THE MATTER FOR REVIEW ON WEDNESDAY, JUNE 24, 2026, AT 8:30 A.M. IN DEPARTMENT 12 OF THE COURT. ANY SUPPLEMENTAL DECLARATIONS IN RESPONSE TO THE NEW CCRC REPORT MUST BE SERVED AND FILED AT LEAST 10 DAYS PRIOR TO THE NEW HEARING DATE. THE PARTIES ARE DIRECTED TO SUBMIT THE REQUIRED CCRC QUESTIONNAIRE (LOCAL

¹ The proof of service shows that Respondent, herself, performed the electronic service. Generally, service must be completed by a third party. In this case, Petitioner filed a Responsive Declaration, thereby waiving any defect in service.

FORM F-17a, WHICH CAN BE DOWNLOADED FROM THE COURT'S WEBSITE OR OBTAINED FROM THE CLERK'S OFFICE) AT LEAST FIVE DAYS PRIOR TO THE CCRC SESSION.

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APRIL 22, 2026
8:30 a.m.

4. IOVANNY MAGANA V. KETSIA BERNARDINO

24FL0292

This matter is before the court for review following the January 21, 2026, and March 05, 2026, hearings.

By way of background, on January 21, 2026, following a CCRC session, the parties stated an agreement on the record concerning basic parenting schedules. The court set a review hearing on March 04, 2026 (subsequently continued to March 05, 2026) to allow the parties additional time for resolution of residual issues.

On March 05, 2026, the court entered the parties' stipulation concerning communications through AppClose and FaceTime. The court ordered the parties to put this stipulation in writing for the court's approval and set the matter for a review hearing. The court directed the parties to submit any supplemental declarations or arguments no later than April 15, 2026.

On April 15, 2026, the Petitioner filed a memorandum of points and authorities in support of his request to obtain a passport for the minor child, BM (age 2). Petitioner also filed a supplemental declaration in support thereof. Both filings were electronically served upon the Respondent on April 15, 2026, according to the proof of service filed that same day.

Also on April 15, 2026, the Respondent filed a supplemental declaration regarding the visitation schedule. Proof of service, also filed April 15, 2026, shows it was electronically served upon the Petitioner that same day.

On April 20, 2026, the Petitioner submitted an unsigned stipulation and objection.

As to the passport issue, the court intends to grant the Petitioner's request to obtain a passport for BM for travel to Mexico.

The court will entertain further argument on visitation and holiday schedules but will not entertain any requests that are inconsistent with the stipulations set forth in the court's January 21, 2026, and March 05, 2026, minute orders; the orders both those dates are confirmed.

TENTATIVE RULING #4: THE COURT INTENDS TO GRANT THE PETITIONER'S REQUEST TO OBTAIN A PASSPORT FOR THE PARTIES' MINOR CHILD, BM (AGE 2). THE COURT WILL ENTERTAIN FURTHER ARGUMENT ON VISITATION AND HOLIDAY SCHEDULE BUT CONFIRMS THE ORDERS SET FORTH IN THE COURT'S JANUARY 21, 2026, AND MARCH 05, 2026, MINUTE ORDERS.

APPEARANCES ARE REQUIRED AT 8:30 A.M., WEDNESDAY, APRIL 22, 2026, IN DEPARTMENT 12.